The Wayback Machine - https://web.archive.org/web/20210227122904/https://sphero.com/pages/privacy

Privacy

Overview

As the industry leaders in connected play, we are passionate about protecting your privacy. This is just a brief summary for you to get the gist of the information we collect and why. Some of our toys collect different types of information, so make sure to check our toy-specific privacy policies as well. See below for our full privacy policy and fine print, written in legalese.

Trust is our priority

We limit the information we collect from children using our toys, and give parents control over their children's information.

Learn more about parental controls >

Collection & Use of Data

Information about you: We may collect information about you, such as your name, age, gender, and username. We use this to provide our service and personalize it for you. For example, we use this information to:

- to set up and maintain your account;
- so our creations can greet you by name and preferred pronoun;
- to localize our services;
- to age-tag our subject matter;
- to deliver age-appropriate content; and
- to manage your warranty.

Contacting You: We may collect information about you, such as your name, age, gender, and username. We use this to provide our service and personalize it for you. For example, we use this information:

- deliver toys;
- send support or administrative emails regarding the service;
- send emails about new toys, deals, awesome content and more; and
- help us provide support.

Tip: If you want to unsubscribe from our marketing emails (although we're not sure why you would), simply click the unsubscribe link at the bottom of any Sphero email and tell us "it's not you, it's me" to soften the blow.

Data from our toys: We collect data from our toys, like when it crashes or how the toy is working. We use this information to, for example:

- provide the smoothest play experience we can; and
- create analytics about how our toys work.

User Controls: Several of our toys process data about the commands you give when you use audio or visual controls. The data is only processed on your toy or device in real-time. We don't store these inputs on our servers.

User Content: Our toys or applications may allow you to record video or audio content, or provide text content. Unless we tell you otherwise, like in Sphero Edu, these are processed and stored only on the device and shown when you want to play them.

Activity History: This is a record of your progress, like a 'saved game' in video game terms. We use this so you can keep up with what you've done with our toys and on your account.

Analytics: We collect some data if you visit our Site, such as data about the pages you visit, how you use the site, etc. We use this data to:

- help improve our site, and
- in some cases, as part of advertising.

Learn more about the data we collect >

Learn more about how we use data >

How we share your data

We don't share your data often, but we do share it in a few ways:

Parents/Teachers
: If you use Sphero Edu in school, we share data with teachers and with parents to make sure they can keep track of their children's information.

Service providers
: Sometimes we ask smart people to do neat things for us, like analyzing how our toys and websites are used, hosting in the cloud, and managing our mailing list.

Other parties
: We share data in a few other ways, like when we need to because the law (or our lawyers) tells us we have to.

Learn more about data sharing >

You're in Control!

We make sure you have control over your data and how we use it. If you don't want to get messages from us or want to close an account, you can do so at any time. Plus, if you want to delete your in-app data from

our live systems, just email our team at support@sphero.com and we'll take care of it (though we may still retain copies of your records in our routine backups). See below for more information about your data rights.

Security

Important information sent to our servers is encrypted in transmission. This is a fancy way of saying we use a code to make sure only the right people can read it. We regularly update our apps and servers to incorporate new and improved security practices and we regularly engage third-party security experts to audit our infrastructure. While many of our toys are hackable and we encourage people to learn, experiment, and build on our platforms, we do put security measures in place to prevent our robots from being used in nefarious ways. Find or suspect a vulnerability in our system? Let us know at security@sphero.com.

Learn more about our security >

International Users

Sphero's HQ is in the (really awesome!) city of Boulder, CO. That means we have to transfer international data to the U.S.

Learn more about international transfers >

Questions? Comments? Concerns? We're here to help!

Contact support@sphero.com and we'll set your mind at ease. You may also reach Sphero's Data Protection Officer at dpo@sphero.com.

The Fine Print

Main Privacy Policy

Last Updated: December 10, 2020

Sphero, Inc. ("Sphero", "we", or "our") is committed to protecting your privacy. This Privacy Policy describes how we collect, use, and disclose information from users of our main website and other sites under the Sphero.com domain, located at www.sphero.com (including any subdomains or versions, the "Site"), the applications linking to this Privacy Policy (the "Applications"), and the services provided through the Site (together with the Site and Applications, the "Services").

Several of our products' applications and, where applicable, products, have their own additional privacy policy, available in the respective application.

This Privacy Policy does not apply to websites, applications, or services that display or link to different privacy statements; in the event of a conflict or inconsistency between this Privacy Policy and a

product/application's privacy policy, the latter will govern.

Search... Login / Signup 0
Close My account Cart

2. Types of Data We Collect

We may collect and process information that relates to identified or identifiable individuals ("**Personal Data**"). We collect and process the following categories of Personal Data (note, specific Personal Data elements listed in each category are only examples and may change):

A. Information You Provide to Us

Identity Data
First name, last name, age or birthday, gender, username/password

Contact Data
Email and mailing address

Payment Data
Credit card, bank account, or other information used in payments

User Content
Text inputs, images, audio/videos recordings, or other content you provide to the Services

User Controls
Audio or visual inputs (e.g. camera inputs) used to control a device

Job Data
Information you include if you apply for a position at Sphero, like resume, personal and contact information, social profiles, and any additional files you submit.

Social Media Data
We may collect Personal Data when you interact with our advertisements and other content on third-party sites or platforms, such as social networking sites. This may include information such as "Likes", demographic information, or the fact that you viewed or interacted with our content.

B. Information We Collect Automatically

Device Data
Data about the device you use to access our Services, e.g. device type, its software version, or carrier

Toy Data
Data about your toy, how the toy or Application is used or operates, such as diagnostic data, MAC Address or device identifier depending on the toy, accelerometer data from crashes, and the like

Usage Data
Data about the use of our Services, including analytics information, how you use our Services, e.g. clickstream data from our Site, information on how long you stay or what you do on our Site, whether a page or email was loaded/opened, and the like

3. How We Process data

Subject to your Rights and Choices below, we generally process your data in the following ways:

A. To Provide our Services

We generally use the Personal Data as necessary to provide our Services, or complete transactions you request. For example:

- We use identity and contact data to create your account, where applicable.
- When you reserve or buy a toy, we will process the identity data, payment data, and contact data you give us that is necessary to complete the transaction.
- If you provide us feedback or contact us via email, we will use your contact data and user content to help carry out your request.
- When you make postings on Sphero Edu or our social media pages, the contact information and user content you give us will be stored on our third-party servers and other users may be able to see it.
- When you interact with the Services, we use usage data to understand what you like and don't like in order to improve the services.
- If you apply to work at Sphero, we use the Job Data to evaluate your application and contact you about it.

B. Toy Operation

Our toys are interactive, and we are always working to improve our toys and make sure everything works. For example:

- We process user controls and user content on the toy or device to help you interact with or control the toys or store your content for use by the toy.
- We use device data and toy data to understand a user's engagement in an activity or feature, for example which activities you played on the toy and data about any crashes during use.
- We use contact and identity data to help personalize the content, e.g. greeting you by username, tracking in-game progress, using the right language, or showing you age-appropriate activities.

C. Analytics

We are always working to improve our Site and want to keep visitors informed about our toys and Services. For example:

- We use usage data when you visit our Site to manage traffic and help us understand and improve the design, usability, and other aspects of our Site.
- We use usage data and device data to help improve our Application and Services, internal operations, and systems.
- We may also create de-identified or aggregate data records from Personal Data by excluding or changing information that makes the information personally identifiable to you. We use this data for a variety of purposes, such as to analyze request and usage patterns so that we may enhance the content of our Services and improve Site functionality.

D. Marketing Communications

We use your Contact Data for promotional marketing if you have purchased a toy or agreed to receive such emails. For example, if you have chosen to provide your Contact Data, we may send you newsletters, surveys, offers, and other promotional materials related to our Services, and for other direct marketing purposes. We do this to promote our toys and issue our direct marketing.

E. Behavioral Advertising

We, and certain third parties operating on or through our Site, may engage in online behavioral advertising. This form of advertising includes various parties and service providers, including third party data controllers, engaged in the processing of personal data in connection with advertising. We may collect usage data and social media data from you and provide it directly to a third party for targeting on a third party platform. Sometimes, these third parties may collect this information directly (e.g. a Facebook "Like" button).

The parties that control the processing of Personal Data for behavioral advertising purposes may build a profile of you containing this information, and may be able to identify you across sites, devices, and over time. These services may also track whether you view, interact with, or how often you have seen an ad, or whether you complete a purchase for a good or service you were shown in an advertisement. See your Rights and Choices below, or Facebook, Instagram, LinkedIn, Reddit, Snapchat, Discord, and Twitter's privacy policies, for information about how you can limit or opt out of this processing.

F. Support

We use information you give us in connection with your support requests, for example, to help solve issues, troubleshoot the toys, manage your account, or respond to your inquiries.
We do not knowingly collect personal data from people under the age of consent as part of our support processes. If you are a child under applicable law, we will only contact you regarding support in compliance with applicable law.
We may use third parties to help provide support to you.

G. Consent

We may use any Personal Data you give us by consent in accordance with that consent. For example, if you provide Job Data, we will use it to evaluate your application.

4. Cookies and Similar Technologies

To make our Site and Services more useful to you, we and certain third parties may process usage and other data when you interact with cookies and similar technologies on our Site. We may receive this data from third parties to the extent allowed by the applicable partner. Please note that the privacy policies of third parties may apply to these technologies and information collected.

"Cookies" are small pieces of information that a website stores on your computer's hard drive while you are viewing a website. We may use both session cookies (which expire once you close your web browser) and persistent cookies (which stay on your computer until you delete them) to provide you with a more personal and interactive experience on our Site and Services. You may remove persistent cookies by following Internet browser help file directions. Web beacons are electronic images that we use on our Sites and Services and in our emails that, when loaded, provide us with information, such as where users navigate on a Site, or whether an email is opened. See below for your choices regarding these technologies.

We generally use usage data, cookies, and similar technologies as follows:

- for "essential" or "functional" purposes, such as to enable various features of the Services like remembering passwords or staying logged in during your session;
- for social media integration e.g. via third-party social media cookies, when you share information using a social media sharing button or "like" button on our Site, or you engage with our content on or through a social networking website such as Facebook or Twitter;

for analytics purposes, consistent with our legitimate interests in how our Services are used or perform, how users engage with and navigate through the Site, what sites users visit before visiting our Site, how often they visit our Site, whether an email was received or opened, and other similar information; and

subject to any consent required by law, for the purpose of displaying advertisements via retargeting to those users who have visited our Site, or for targeting advertising to visitors to our Site.

Note: We do not place advertising cookies on your browser, nor serve targeted advertisements to you if you have only visited: https://edu.sphero.com.

5. Data Sharing

We may share information we collect with a variety of parties, depending upon the purpose for and context in which you provided that information. We generally share data with the following types of recipients:

A. Parents/Schools

Consistent with the Sphero Edu Privacy Policy, applicable law, and your choice, we share Personal Data, including User Content with parents and teachers.

B. Service Providers

In connection with our general business operations, toy/Service improvements, to enable certain features, and in connection with our other legitimate business interests, we may share your Personal Data with service providers or sub-processors who provide certain services or process data on our behalf. See the Data Processor List below for more information.

C. Affiliates

In order to streamline certain business operations and develop toys and services that better meet the interests and needs of our customers, and inform our customers about relevant toys and Services, we may share your Personal Data with any of our current or future affiliated entities or subsidiaries.

D. Marketers

In order to deliver certain advertisements and develop better toys and Services, we may share certain Personal Data collected from our Site (as described in the Cookies and Similar Technology section above) with trusted third parties for marketing, advertising, or similar commercial purposes.

E. Corporate Events

Your Personal Data may be processed in the event that we go through a business transition, such as a merger, acquisition, liquidation, or sale of all or a portion of our assets. For example, Personal Data may be part of the assets transferred, or may be disclosed (subject to confidentiality restrictions) during the due diligence process for a potential transaction.

F. Legal Disclosures

In limited circumstances, we may, without notice or your consent, access and disclose your Personal Data, any communications sent or received by you, and any other information that we may have about you to the extent we believe such disclosure is legally required, to prevent or respond to a crime, to investigate violations of our Terms of Use, or to protect the vital interests of us or any person. Note, these disclosures may be made to governments that do not ensure the same degree of protection of your Personal Data as your home jurisdiction. We may, in our sole discretion (but without any obligation), object to the disclosure of your Personal Data to such parties.

6. Data Processor List

Provider	Function	Product
Adobe Creative Cloud	Creative Suite of Tools	All
Agile PLM	Part Management	All
Aiven	Cloud Services	Toys/Apps
Altium	Electrical Engineering	All
Amplitude	Data Analytics	Sphero Play / Edu
AssetTiger	Asset Management	All
Atlassian (Jira Cloud)	Project Management	All
Active Campaign	Email marketing	Email
AutoDesk	Creative Suite of Tools	All
AWS	Hosting Provider	All
Basecamp	Project Management	All
Clever	School Application Management and Communication	Edu
Discourse	Community Forums	All
Docusign	Signature Collection	All
Dun & Bradstreet	Support	All

Provider	Function	Product
Electric	IT helpdesk service	All
Enchant	Ticketing System	All
Firebase	Storage and Content Management	Specdrums App
GitHub	Code Repositories	All
GitLab	Code Repositories	All
Google	Web Analytics and Remarketing, Crash Analytics (Crashlytics)	Site
Google Cloud	Cloud services for Toy Data (no Personal Data)	All
Google Suite	Collaboration and Productivity	All
Gorgias	Support	Site
Graphene	Database service	Classroom.littlebits.cor
HelloFax	eFax	All
Heroku	Platform as a service	Classroom.littlebits.cor
Jumpcloud	Directory Services	All
LastPass	Password Management	All
Lucidchart	Charting	All
Meraki	MDM Policies	All
Netsuite	Business Management	All

Provider	Function	Product
Office 365	Communication and Collaboration	All
Paylocity	HR Support	All
Pivotal	Project Management	All
PureMod	Moderation of User Posts	Edu
Salesforce	Customer Relationship Management	All
SendGrid	Email Marketing and Ads	Email
Shopify	Corporate web site/ecommerce	Site<
Slack	Communication and Collaboration	All
Smartsheet	Project Management	All
SolidWorks	Mechanical Engineering	All
Sophos	AntiVirus / AntiMalware	All
syncHR	HR Support	All
Trello	Project Management	All
Unity	App Development	All
YouTube	Video Hosting	Edu
Zoom	Video Conferencing	Video Conferencing
Zonos	Order Shipping	Site

7. Your Rights and Choices

You, or your parent/guardian (if you are a child), may exercise the below Rights and Choices by emailing us at dpo@sphero.com. Our mailing address is Sphero, Inc., Attn: DPO, 4775 Walnut St., Suite 100, Boulder, CO 80301.

A. Your Rights

Subject to the rights granted to other individuals, and our rights to limit or deny access/disclosure under applicable law, you have the following rights in your Personal Data. We may require that you provide additional Personal Data to exercise these rights, e.g. information necessary to prove your identity. Note: we may not have access to or control over all or some Personal Data controlled by education partners and others. Please contact these third parties directly for data rights requests regarding information under these third parties' control, and we will assist the you as appropriate in the fulfillment of your request.

Access

You may receive a list of your Personal Data that we process to the extent required and permitted by law.

Rectification

You may correct any Personal Data that we hold about you to the extent required and permitted by law. You may be able to make changes to much of the information you provided directly to the Application or Service via your account settings menu.

Erasure

To the extent required by applicable law, you may request that we delete your Personal Data from our systems. You may request erasure of your Contact Data by emailing us at dpo@sphero.com.

Data Export

To the extent required by applicable law, we will send you a copy of your Personal Data in a common portable format of our choice.

Objection

Where we process data in accordance with our legitimate interests, you can object to that processing to the extent allowed by law. You can stop future collection of all data by the Application by uninstalling it.

Regulator Contract

You have the right to contact or file a complaint with regulators or supervisory authorities about our processing of Personal Data. To do so, please contact your local data protection or consumer protection authority.

California Rights

Residents of California (and others to the extent required by applicable law) may request a list of Personal Data we have disclosed about you to third parties for direct marketing purposes during the preceding calendar year. This request must be written, signed, and mailed to us at the address above.

B. Your Choices

You may use some of our Services without providing any Personal Data, but you may not be able to access certain features or view certain content. You have the following choices regarding the Personal Data we process:

Consent

If you consent to processing, you may withdraw your consent at any time, to the extent required by law.

Direct Marketing

You may opt out of or withdraw your consent to direct marketing communications. **You may cease direct marketing from us in relation to any Service that collects your email by emailing support@sphero.com, or by clicking the unsubscribe link in any promotional email we send you.**

Cookies & Similar Tech

If you do not want information collected through the use of cookies, you can manage/deny cookies (and certain technologies) using your browser's settings menu. Please note this does not necessarily opt you out of being delivered advertising. You may continue to receive generic ads. You must opt out of third party services directly via the third party. You may view a list of other third party service providers who collect information, and/or opt out of such collection of information about you, by visiting https://www.networkadvertising.org/choices/ or https://www.aboutads.info/choices. Please note, at this time, our Service does not respond to your browser's do-not-track request. You may opt out as follows:

DoubleClick (here)

Google Analytics (here)

Lotame (here)

Bing (here)

IMM (here)

As of January 1, 2020, the California Consumer Privacy Act (CCPA) grants these specific rights to California residents.

1. Right to Know. California residents have the right to request that we disclose certain information about our collection and use of personal information over the past 12 months. This includes the specific pieces of personal information we collected from you, the categories of personal information collected, the source of the information, our business and commercial purposes for using the information and, if the information was disclosed or sold to third parties, the categories of personal information disclosed or sold to third parties and the categories of third parties to whom such information was disclosed or sold;
2. Right to Delete. The right to have such information deleted (with exceptions);
3. Right to Opt-out.The right to request that personal information not be sold to third parties, if applicable; and
4. Right to Non-Discrimination. The right not to be discriminated against because they exercised any of the new rights. With respect to the CCPA, Sphero collects the following categories of information:

   Identifiers

   Select Information in Customer Records

   Commercial Purchasing Information

   Internet or Network Activity

   Geolocation

   Information Typically Detected by the Senses

   Employment Information

   Education Information

   Inferences from the Above

To submit a personal information or erasure request under CCPA, you can use the form located here or call us at **1-888-977-4376**. You will need to provide your email address. We will send an email to your address and await your reply to confirm your identity before any data is changed, sent or deleted. We reserve the

right to deny any requests for which identity cannot be verified. If you have authorized another person to make a request on your behalf, that person must provide us your written authorization allowing them to make such a request on your behalf. We reserve the right to deny any request by an authorized agent if we are not reasonably able to confirm proper authorization.

8. Data Retention

Subject to the earlier exercise of your Rights and Choices, we will store your Personal Data as long as you have an account on the Services. We may keep your email as long as you do not revoke your consent to direct marketing. We will store your Site Data as long as we deem reasonably necessary to provide the Services. We store log data, which may contain Personal Data, for less than three months. Our data warehouse, which does not store any Personal Data, stores information indefinitely. We are developing ways to retain your data for shorter periods and will update this Privacy Policy accordingly.

9. Security

We use appropriate technical and organizational means to protect your Personal Data. For example, we use SSL to encrypt data in transit. We encrypt passwords at rest. **Unfortunately, no data transmission over the Internet or data storage system can be guaranteed to be 100% secure and we do not warrant complete security of your Personal Data or the Services.** If you have reason to believe that your interaction with us is no longer secure (for example, if you feel that the security of any account you might have with us is compromised), please immediately notify us of the problem.

10. International Transfers

We operate in and use service providers located in the United States. If you are located outside the U.S., your Personal Data may be transferred to the U.S. The U.S. does not provide the same legal protections guaranteed to Personal Data in the European Union. If you create and use accounts with Sphero services, you consent to your data being processed and stored in the United States.

11. EU Users

To comply with the requirements of the European General Data Protection Regulation (GDPR) for our European users, this section outlines the legal bases on which we process your Personal Data. The terms and conditions contained in this section apply only to the Personal Data of European Union residents we may process.

We operate in and use service providers located in the United States. The U.S. does not provide the same legal protections guaranteed to Personal Data in the European Union. When you create an account on a Sphero service, you consent to your data being transferred, stored and processed in the U.S. Contact us for more information regarding the mechanisms to ensure adequate protection of data subject to EU Law.

A. Controller

Sphero, Inc., a Delaware corporation, is the data controller for Personal Data collected under this Privacy Policy, provided that Sphero Robotics UK Limited, a wholly-owned subsidiary of Sphero, Inc., processes

certain human resources data in the UK. In certain cases (e.g. when we partner with schools or shippers) our partner may be a co-controller with respect to certain Personal Data we provide it.

B. Legal bases for processing

The legal bases for our processing of your Personal Data are in the table below. If you have questions about our processing of your Personal Data, contact us at dpo@sphero.com. For more information on specific legitimate interests for processing by our Applications or toys, see their respective privacy policies.

Processing purpose	Legal Basis
Use: Analytics Marketing Communications Behavioral Marketing Support Cookies and Similar Technologies Disclosure: Service Providers Affiliates Marketers Corporate Events	These processing activities are within our legitimate interests, including with Direct marketing Personalization and customization of the Services for individual users Determining the effectiveness of marketing campaigns Localizing our Services Creating, supporting, providing, and supporting innovative toys, Applica Securing our Services and network, investigating suspicious activity or We balance our interests with any potential impact on you when we process
Disclosure: Legal Disclosures	Processing is necessary to comply with our legal obligations, for example, ta
Use: Consent Cookies and Similar Technologies	Where we rely on your consent you have the right to withdraw it anytime in th

12. Contact Information

Sphero welcomes your comments or questions regarding this Privacy Policy. Please contact us at:

Sphero, Inc.
Attn: Legal, Privacy Policy
4772 Walnut St, Suite 206
Boulder, CO 80301

legal@sphero.com

Sphero's Data Protection Officer may be reached at dpo@sphero.com. Please include "Attention: Data Protection Officer" in your email.

13. Specific Privacy Policies

Several of our products' applications and, where applicable, products, has its own additional privacy policy, available below and in the respective application. This Privacy Policy controls with respect to any subject not explicitly covered in an individual privacy policy. The individual privacy policies are:

- Sphero Play App Privacy Policy
- Sphero Edu & Child Privacy Policy
- Specdrums MIX Privacy Policy
- Ultimate Lightning McQueen Privacy Policy
- Star Wars Droid App Privacy Policy
- BB-8 Droid Application Privacy Policy
- Force Band Privacy Policy

14. Changes to This Privacy Policy

This Privacy Policy is subject to occasional revision. If we make any changes to this Privacy Policy, we will change the "Last Updated" date above. If there are material changes to our Privacy Policy, we will post a prominent notice on our website and/or provide other notice as required by law.

NSPIRING THE CREATORS OF TOMORROW

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Please verify your request*

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Contact an International Sales Rep

Contact Customer Support

Returns & Warranty

Legacy Products

Security

FAQ

Privacy Policy

Do Not Sell My Personal Information

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Case Studies & Whitepapers

Sphero SDK

App Downloads

Self-Service Resources

Manuals

Sphero Patents

Homeschool STEM Education

Follow Us

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If you are using a screen reader and having issues with our website please email support@sphero.com for assistance.